

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN GUATEMALA

Complete Community Opposition How-To

*This guide uses the Guatemalan terms and bodies you'll actually run into — the **licencia ambiental** and the **instrumento ambiental**, **MARN** and **MEM**, the **amparo** and the **Corte de Constitucionalidad**, **consulta previa** under **ILO 169**, the **consulta comunitaria** — and explains each in plain words the first time. Opposing these projects in Guatemala can be dangerous, so this guide puts your safety first.*

INTRODUCTION & FRAMEWORK

In the hills of southeastern Guatemala, the **Xinka** people faced one of Central America's largest silver mines — **Escobal** — approved and operating without anyone having properly asked them. So they turned to the one lever Guatemala makes uniquely powerful. They went to court on a single, devastating point: the State had never carried out the **prior consultation** that international law requires when a project affects Indigenous peoples. The Supreme Court, sitting as a tribunal of **amparo**, **suspended the mining licence**. And in **2018 the Constitutional Court held that the State had violated the Xinka's right to prior, free, informed and good-faith consultation** — the government having gone so far as to **deny that the Xinka existed** in the affected municipalities — and ordered operations suspended until a genuine consultation was done. Years later, the mine **remains suspended**, the consultation still unresolved. A people the State pretended not to see stopped a major mine — and have held it stopped.

The Xinka people stopped the Escobal silver mine on a single, devastating point — the State had never carried out the **prior consultation** international law requires — and that consultation right is one of the strongest legal levers found anywhere. Guatemala has ratified **ILO Convention 169**, and the **Corte de Constitucionalidad** has held it carries **constitutional rank**, meaning that **mining and hydroelectric licences granted without prior consultation of the affected Indigenous peoples are illegal and arbitrary**. The courts have acted on it — suspending Escobal, where the government had gone so far as to deny the Xinka existed, and at the **Oxec** hydro projects alike — litigated through the **amparo**. The domestic environmental-licence system (through **MARN**) is the weaker gate; the consultation question is the sharp one. But these tools have grave limits, and this guide states them plainly, because the counterweight is heavy and can be deadly. Guatemala's institutions are weak; environmental licences rest on studies the developer pays for; the mining ministry has issued licences over community objection; and the Constitutional Court has been inconsistent — in the same period it declared **34 community consultations** by the Maya K'aqchikel legally "non-existent." And most seriously, **opposing these projects is dangerous**: Indigenous authorities and leaders have been criminalised, prosecuted, and imprisoned, and communities have faced militarisation and states of exception. So this is a fight that can be won — Escobal proves it — but it must be fought carefully, and your people's safety comes before any outcome.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A Guatemalan project needs its **environmental licence** (from **MARN**); on Indigenous land it needs **prior consultation** under **ILO 169**; and the licence — or the failure to consult — can be challenged by **amparo** before the **Constitutional Court**, which has suspended mines and dams for exactly that failure. Every one

of those is a link you can grab. **Find the one closest to your hand and pull — and keep your people safe.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **If Indigenous peoples were not consulted, that is your sharpest lever** — the Constitutional Court has suspended a mine and dams for it, and the suspension has held.
- **If the environmental study is flawed, the licence can be challenged** — but this gate is weaker than the consultation one.
- **A community consultation (consulta comunitaria) records your refusal** — but the courts have discounted some, so use it to build legitimacy, not as the whole case.
- **The danger is real and can be lethal** — leaders have been imprisoned and communities militarised, so protect people above all.

Read the whole guide once before you move. Two habits run through it: **use the consultation lever** — ILO 169, litigated by amparo, is Guatemala's strongest — and **combine the strands** safely: the documents, the consultation question, the amparo, the community's organised refusal, the press, and international attention. That combination, kept safe, is how Escobal was stopped.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The environmental gate is the **licencia ambiental**, granted by **MARN** (the Ministry of Environment) on an **instrumento ambiental** whose depth depends on the project's category (A, B1, B2, C — the most damaging needing a full impact study and a **vista al público**, a public display and comment period). The **Ministry of Energy and Mines (MEM)** grants mining and hydro rights. But the decisive authority on Indigenous rights is the **Corte de Constitucionalidad**, through the amparo — it can suspend a licence for a missing consultation. Know which decision you can reach, and aim the consultation argument at the court.

How a Project Moves — and Where You Jump In

The environmental study and the vista al público. The developer's instrumento ambiental goes to MARN, with (for major projects) a public-comment period. *Your opening* — and it arms every later step: file objections now, and demand your right to information and participation.

Prior consultation. Where Indigenous peoples are affected, ILO 169 requires prior consultation. *Your opening* — *the sharpest*: a licence granted without it is illegal and arbitrary.

The licence. MARN and MEM grant the licence. *Your opening*: challenge it — above all the missing consultation — by **amparo**, seeking a **provisional amparo** to suspend it.

Operation. *Your opening*: as at Escobal, the amparo can suspend even an operating mine.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a foreign parent is sensitive to reputation and investors (Escobal's owners have changed hands). **What it still needs** — the licence not final, consultation

not done, financing not closed: whatever's missing is the soft spot (a missing consultation is the biggest).

Who's paying — banks and financiers with their own standards.

Who's Supposed to Be Watching

Each is an ally or an arena — used carefully. **MARN** grants the environmental licence and can be pressed. The **Corte de Constitucionalidad**, via amparo, is the sharpest lever — it has suspended a mine and dams. The **Human Rights Ombudsman (PDH)** takes complaints. International bodies — the **Inter-American system** and **ILO supervisory bodies** — watch Guatemala's compliance with consultation. And Guatemala's **Indigenous authorities, its communities, human-rights organisations, and press** are the forces that reach furthest — the combination that stopped Escobal. But all of this operates in a dangerous environment; protect people.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether Indigenous consultation was skipped, how early you get to the amparo, and — always — how much danger resistance carries.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (safely)	5–10%	weeks	low	The base for everything else
Objections in the vista al público	15–35%	during licensing	low	On record; conditions or a redo
Amparo on missing consultation	35–60%	months–2 yr	low	Licence suspended; consultation ordered (Escobal)
Community consultation (consulta comunitaria)	20–45%	weeks–months	low	Refusal recorded; legitimacy (courts vary)
Environmental-licence challenge	20–40%	months–yr	low	Licence conditioned or annulled
International (Inter-American / ILO) pressure	20–45%	months–yr	low	Scrutiny; pressure
Everything together (consultation skipped, world watching)	40–65%	1–3 yr	low	Suspended, delayed, precedent set
Everything together (state-backed, closed/violent context)	15–40%	1–3 yr	low, risky	Delayed, exposed — protect people first

The lever that moves the needle most is the **amparo on missing consultation** — it suspended Escobal and Oxec — backed by the community's organised refusal and international attention. Escobal shows the ceiling (a major operating mine suspended, and held) and the honest floor (weak institutions, an inconsistent Court, and grave danger). So aim for a suspension while consultation is litigated, organise so your refusal is unmistakable, and protect your people.

On cost and safety: the amparo, objecting, and organising are low-cost, and human-rights organisations bring the cases. But leaders have been criminalised and imprisoned and

communities militarised — so keep everything lawful and disciplined, protect the vulnerable, and route risk through lawyers, the PDH, and international allies.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this licence, this skipped consultation, this people — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it? Name the project, the company, its foreign parent, its financiers.

2. Where is it, and who does it affect — and are Indigenous peoples affected? Get the footprint and lay it over **Indigenous peoples and their lands**, rivers and water, farmland, communities. **Whether Indigenous peoples are affected is your sharpest lever**, so establish this first — Escobal turned on the Xinka the State pretended weren't there.

3. What stage is it at, and what's the next deadline? Is the vista al público open? Has the licence issued (opening the amparo)? These openings are time-bound — and getting the consultation question to the court early is the goal.

4. What does it still need that it lacks? A licence not final, consultation not done, financing not closed. The missing consultation is the biggest soft spot.

5. Who else is affected, and who already opposes it? Neighbouring communities, Indigenous authorities, human-rights organisations. Escobal united the Xinka across municipalities.

What this looks like in real life. A community learns a mine or dam is planned affecting Indigenous people, with no real consultation. The five questions yield: a company (and foreign parent) behind it; a site affecting an Indigenous people (the sharp lever); a licence issued or pending without consultation; a project still needing it; and a coalition of communities and Indigenous authorities. That's the Escobal pattern — press the missing consultation, get it to the Constitutional Court by amparo, and secure suspension.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — gathered **safely**. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the instrumento ambiental, the licence and conditions, any consultation records (or the absence of them), the mining or hydro title. Then read them hard for flaws — an understated impact, an ignored alternative, and above all **whether prior consultation happened at all** (its absence is the sharpest ground).

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the land — baseline evidence most of all — and, carefully, the testimony of affected residents and Indigenous authorities. In this dangerous context, weigh the risk to anyone documenting.

Layer three: the map of Indigenous peoples and territory. Lay the project over the Indigenous peoples and lands affected, so the consultation lever is unmistakable — establishing who the affected peoples are (the very thing the State denied at Escobal) is central. This feeds the amparo.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The instrumento ambiental, the licence and conditions, the consultation records (or their absence), the mining/hydro title** — from MARN and MEM (8A).
- **Evidence of the affected Indigenous peoples** — from the communities' own authorities and records, to establish the consultation right.
- **Ownership and financing** — company and financier records.
- **The Indigenous-peoples-and-territory map** — the peoples and lands affected, laid over the site.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Escobal was won by the Xinka's organised, unmistakable refusal. Build it **safely**. Four moves.

Start with a tight, trusted core. The community members most affected, the people who know the land and water, a few tireless organisers, and respected Indigenous and community authorities — people you trust.

Centre Indigenous authorities and the community's own structures. Where Indigenous peoples are affected, their authorities hold the strongest ground and the consultation right. Build the campaign around supporting that leadership, at their direction — and consider a **community consultation (consulta comunitaria)** to record the community's refusal (useful for legitimacy, even though courts have discounted some).

Widen the circle and reach human-rights organisations. Pull in neighbouring communities and the national human-rights and Indigenous-rights organisations that bring the amparo litigation and a measure of protection.

Bring in lawyers — and plan for safety above all. Public-interest lawyers who run amparo cases, and a serious safety plan. Leaders have been criminalised and imprisoned — keep everything lawful and disciplined, protect the vulnerable, prepare for criminalisation, and route danger through lawyers, the PDH, and international attention.

Build to last, and hold the win. Guatemalan fights run for years — Escobal has stayed suspended for years. Build clear roles, a secure archive, careful communications, a way to decide together, a safety plan, and a plan to hold a suspension in place through a consultation the State may drag out or manipulate.

STEP 4: LEGAL CHALLENGES, CONSULTATION & THE AMPARO

Law is Guatemala's sharpest lever — because of ILO 169 and the amparo — but wield it safely.

Object and Consult First

Everything downstream is stronger if you objected in the vista al público and — where fitting — held a **community consultation** recording the community's refusal. That refusal is legitimacy; the legal engine is the consultation question.

The Amparo on Missing Consultation — the Sharpest Lever

The core route is the **amparo** — a constitutional protection action — before the **Corte de Constitucionalidad**, on the ground that the State granted the licence **without the prior consultation ILO 169 requires**. Because the Convention carries **constitutional rank**, a licence granted without consultation is **illegal and arbitrary**. Seek a **provisional amparo (amparo provisional)** to **suspend** the project while the case is litigated — the very mechanism that stopped Escobal and Oxec, and that even suspended an operating mine. Get this question to the court **early**.

The Environmental Licence and International Bodies

Two more levers. The **environmental licence** can be challenged where the study is defective — a weaker gate, but real. And internationally, the **Inter-American system** and the **ILO supervisory bodies** watch Guatemala's compliance with consultation and are external pressure where the domestic system fails.

The Honest Limits

Straight talk: the amparo on consultation is genuinely powerful, but institutions are weak, the Constitutional Court has been inconsistent (discounting some community consultations), and — the gravest limit — resistance can be criminalised and lethal. So use the strong tools — the consultation question, the amparo and its suspension, the environmental challenge, international bodies — protect your people above all, plan to hold a suspension, and count a suspended licence, an ordered consultation the community controls, delay, and a precedent as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A skipped consultation becomes a suspended licence. Not "we don't want the mine" but *"the State granted this licence without the prior consultation ILO 169 requires — it is illegal and arbitrary, and must be suspended by amparo."*

A people becomes undeniable. *"We are the affected Indigenous people here — as the Xinka were, whom the State pretended did not exist — and we were never consulted."*

A community consultation becomes legitimacy. *"Our community consultation records our refusal — the unmistakable will of the affected people."*

The harm becomes an international story. *"The water, the land, the peoples the State refused to see — for a mine imposed without our consent."*

Match it to the venue: the objections to MARN; the missing consultation to the Constitutional Court by amparo; the refusal to the community consultation and the record; the human story to the press and the Inter-American system.

STEP 5: MEDIA STRATEGY

In Guatemala, attention and international scrutiny protect a fragile win — Escobal became a national and international cause — but the domestic context is dangerous, so handle media with care.

Lead with people and place, not procedure. Not "the consultation was defective" but "the water, the land, the peoples the State refused to see — for a mine imposed without our consent." Use your strongest material: dated evidence, the map of the affected peoples, and — carefully — Indigenous voices, without

exposing anyone.

Work several audiences at once — reach the world. National press and human-rights organisations build pressure; international media and the Inter-American and ILO bodies reach beyond a State that may criminalise at home, and help protect people. Make it easy: captioned evidence, accurate summaries, a map, careful voices — and let Indigenous peoples lead the telling of their own story.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people above everything — weigh every public act for safety.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies safely; and protect anyone at risk.

8A — Request for the licence and study (to MARN / MEM).

Subject: Solicitud de información — [proyecto].

"We, residents of [place], request the instrumento ambiental, the environmental licence and its conditions, the consultation records, and the mining/hydro title for [project] at [location]. [Contact.]"

8B — Objection in the vista al público.

Subject: Observaciones — [proyecto].

"We, residents of [place] and [the Indigenous people], object to [project]: [no prior consultation was carried out; the study understates the impact]. We ask that the licence be refused. [Attach evidence.]"

8C — To a human-rights organisation / lawyer (amparo).

Subject: Amparo por falta de consulta — [proyecto].

"Our community and [the Indigenous people] face [project], granted without the prior consultation ILO 169 requires. We've gathered [the licence, the record, photographs] and ask you to bring an amparo, seeking provisional suspension, as partners. [Contact and evidence summary.]"

8D — Instructing a lawyer (provisional amparo).

Subject: Amparo provisional — [proyecto].

"We instruct you to bring an amparo before the Corte de Constitucionalidad because the licence for [project] was granted without prior consultation, and to seek a provisional amparo suspending it. [Attach the licence and our evidence.]"

8E — To the Human Rights Ombudsman (PDH).

Subject: Queja — [proyecto] en [lugar].

"We ask the PDH to intervene regarding [project], granted without our consultation, and [any criminalisation or threats against community members]. [Attach evidence.]"

8F — To the Inter-American system / ILO.

Subject: Failure to consult — [project], Guatemala.

"We report that the State authorised [project] at [location] without the prior consultation ILO 169 requires, affecting [the Indigenous people]. We ask you to consider this against Guatemala's obligations. [Attach evidence.]"

8G — Letter to the press.

Subject: [Community] moves to protect [land / water] from [project].

"For generations the [Indigenous people] of [place] have lived from [the land / the water] at [location]. Now [project] threatens it — imposed without the consultation the law requires. We can provide evidence, a map — and, carefully, interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can stop this — here's how, safely.

"[Project] threatens [our land / water]. The Xinka stopped a major silver mine — Escobal — because the State never consulted them, and won a suspension that still holds. Through our organised refusal, an amparo on the missing consultation, and international attention, we have a real chance — protecting one another above all. Please join us — lawful, disciplined, safe. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and whether Indigenous peoples are affected.** Consultation is your sharpest lever.
2. **Object in the vista al público (8B), and consider a community consultation to record your refusal.**
3. **Request the licence and study (8A), and confirm whether consultation ever happened.**
4. **Photograph everything, with dates and places, safely.**
5. **Get a lawyer for an amparo on the missing consultation (8C/8D), and seek provisional suspension.**
6. **Involve the PDH and international bodies, and go public carefully (8E/8F/8G).** Escobal was stopped this way.

Even lean, those six put the consultation question before the court, secure suspension, and connect you to protection.

WHEN THE SYSTEM IS TILTED

Guatemala's tools are real, but the field is dangerously tilted, and you must plan for it — safety first.

When the State backs the project. Use the amparo on consultation, the community's refusal, and international attention — and avoid confrontation that invites criminalisation or militarisation.

When the Court is inconsistent. It has discounted some community consultations. Use the consultation as legitimacy, but rest the legal case on the ILO 169 prior-consultation ground, which it has enforced (Escobal, Oxec).

When leaders are criminalised. This is the gravest danger. Prepare for it: keep everything lawful and disciplined, secure legal defence in advance, protect the vulnerable, and use the PDH and international attention as a shield.

When a win is dragged out. A suspension pending consultation can be stalled or the consultation manipulated. Hold the line — keep the community organised and the international attention alive.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Guatemala has documented, severe problems with the capture of licensing and the criminalisation of defenders, so this matters — approach it with great care.

How to spot it. Licences against the evidence; a study written for the proponent; consultation skipped or a people denied to exist; leaders criminalised to clear the way; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Human Rights Ombudsman (PDH)** takes complaints. The **Public Ministry** handles crime (though it has itself been contested). The **Corte de Constitucionalidad** can suspend a tainted licence. And the **Inter-American system, ILO bodies**, and international press are crucial external checks in a captured environment.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; here they can be dangerous. Route serious evidence to the PDH, trusted lawyers, and international bodies, protect witnesses above all, and pair the exposure with the amparo.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; establishing the affected Indigenous peoples aims it; centring their authorities builds the muscle; the amparo on consultation presses the case; international attention protects your people and raises the cost. Together they multiply. One at a time, they stall — and hold the win.

Early on (weeks 1–8): nail down the project, its footprint, and the affected Indigenous peoples; object in the vista al público and consider a community consultation; request the records; photograph the baseline safely; centre Indigenous authorities and get a lawyer.

In the thick of it (months–years): bring an amparo on the missing consultation and seek provisional suspension; involve the PDH and international bodies; keep the community organised and open the media front carefully.

The long haul (years): carry the amparo through the Constitutional Court; keep the suspension in place through the ordered consultation; hold the line for a suspended licence, a community-controlled consultation, delay, and a precedent — protecting your people throughout.

FINAL ASSESSMENT

Stopping a destructive project in Guatemala can be done — the Xinka, a people the State pretended did not exist, suspended a major silver mine and have kept it suspended, because they were never consulted. Hold both truths, and never forget the danger. Guatemala's tools include one of the strongest legal levers anywhere: ILO 169 with constitutional rank, so a licence granted without prior consultation is illegal and arbitrary, suspendable by amparo before the Constitutional Court — which has stopped a mine and dams. And the constraints are grave: weak institutions, developer-commissioned studies, an inconsistent Court, and the criminalisation, imprisonment, and militarisation of those who resist.

Here's the discipline that wins, and it stays lawful and safe. Establish whether Indigenous peoples are affected — your sharpest lever — and confirm whether consultation ever happened. Object, record the community's refusal, and gather the record. Bring an amparo on the missing consultation before the Constitutional Court, and secure a provisional suspension — early. Centre Indigenous authorities, involve the PDH and international bodies, and protect your people above every other consideration. Count a suspended licence, a community-controlled consultation, delay, and a precedent as wins. That's what the Xinka did — their organised refusal, the amparo, and the world's attention together — and the danger they faced is the reason your first duty is to protect one another. So can you — lawfully, and safely.